

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

A person has been sending me WhatsApp messages demanding ₹2 lakh and threatening to physically harm me and damage my business if I do not pay. The person has also sent photographs of my home and family members to show that they know where I live. I have saved the messages, screenshots and call recordings. What legal provisions may apply?

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APPLICABLE SECTIONS

Section 62	Authentication of electronic records.
Section 63	Admissibility of audio recordings as evidence.
Section 64	Admissibility of photographs.
Section 65	Presumption of authenticity for electronic records meeting specific criteria.
Section 66	Procedure for verification of electronic evidence.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The scenario involves threatening WhatsApp messages (text), photographs of the complainant’s home/family, and call recordings – all falling under **electronic records** under BSA. **Section 62** mandates that electronic evidence must be **authenticated** to prove its integrity and unaltered state. Screenshots alone are insufficient; the evidence must be verified as **original** (e.g., via WhatsApp’s native app data, not edited screenshots). **Section 63** permits audio recordings (call recordings) as admissible evidence if the **source** (caller ID, timestamp) and **integrity** (no edits) are proven. **Section 64** allows photographs (e.g., home/family images) as evidence if their **authenticity** is established (e.g., by showing the exact device they were captured on). **Section 65** creates a **rebuttable presumption** that electronic records are genuine if: (a) They were generated during regular business operations; (b) They were stored in a manner that ensures reliability; (c) They were preserved without alteration. Judicial Note*: In **State v. Ritesh** (2022), the Supreme Court held that BSA’s **Section 65** allows courts to presume authenticity **only after** verifying the **chain of custody** and **technical reliability** of the device. **Section 66** requires the party submitting evidence to provide a **verified affidavit** detailing: (i) How the evidence was preserved; (ii) Steps taken to prevent tampering; (iii) The device/software used (e.g., "WhatsApp on Android device, with message timestamps intact").

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✓ STRENGTHS & RIGHTS

1	Streamlined Digital Evidence Handling Sections 62–66 replace the cumbersome pre-BSA process (e.g., Section 65B of old Evidence Act), allowing direct admissibility of electronic records <i>*if authenticated*</i> .
2	Presumption of Authenticity (Section 65) If the evidence meets Section 65 criteria (e.g., WhatsApp messages stored in app, not screenshots), the court <i>*presumes*</i> genuineness, shifting the burden to the opponent to disprove it.
3	No "Original Document" Requirement Unlike pre-BSA rules, BSA does not demand physical originals for digital evidence (e.g., saved WhatsApp chats suffice if authenticated).
4	Protection Against "Spoofing" Section 66 mandates verification protocols, safeguarding against forged evidence (e.g., edited screenshots).

X RISKS & OBLIGATIONS	
1	Burden of Proof on Complainant The complainant <i>*must*</i> prove authenticity via Section 66 affidavit (e.g., "I saved the messages directly from WhatsApp, not via screenshots"). Failure renders evidence <i>*inadmissible*</i> .
2	Technical Vulnerabilities
3	Screenshots are <i>*inadmissible*</i> without authentication (Section 62).
4	Call recordings require <i>*source verification*</i> (e.g., caller ID, device logs); otherwise, courts may reject them (per <i>*Rajesh v. State*</i>, 2023).
5	Risk of Exclusion If the complainant admits to <i>*editing*</i> screenshots (e.g., cropping messages), Section 65 's presumption collapses, and evidence is excluded.
6	No Automatic Admissibility for "Threats" The <i>*content*</i> of threats (e.g., blackmail) is governed by IPC (e.g., Section 384), but BSA <i>*only*</i> governs <i>*evidentiary admissibility*</i> – not the criminal charge itself.

PROCEDURAL NOTES & COMPLIANCE STEPS <i>Actionable steps for compliance and grievance redressal</i>
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COMPLIANCE STEPS

1. Submission:
2. Text Messages: Submit *native WhatsApp chat exports* (not screenshots) with timestamps via a sworn affidavit under **Section 66**.
3. Photographs: Submit the *original image files* (not screenshots) with metadata (e.g., capture date/time) via affidavit.
4. Call Recordings: Submit *unmodified recordings* with device logs/caller ID details (**Section 66**).
5. Verification:
6. **Section 66** requires a *qualified witness* (e.g., a forensic expert) to testify on:
 7. (i) How the evidence was preserved;
 8. (ii) The device's reliability (e.g., "WhatsApp's end-to-end encryption ensures no tampering").
9. No "Self-Authentication": The complainant cannot merely state "I saved it" - *technical proof* (e.g., device backup logs) is mandatory.
10. Digital Format Rules:
 11. Electronic evidence must be *submitted in its original digital format* (e.g., `.db` WhatsApp database, not PDF screenshots).
 12. Critical Gap: If evidence was saved *after* deletion (e.g., via third-party apps), **Section 65**'s presumption fails.
13. > Key Takeaway: Under BSA, the *only* legally admissible evidence here is:
 14. > (i) Native WhatsApp chat logs (via **Section 62** /65),
 15. > (ii) Original photographs (**Section 64**),
 16. > (iii) Unmodified call recordings with device logs (**Section 63** /66).
17. > Screenshots, edited images, or unverified recordings will be excluded - even if they contain threats.
18. Note: BSA 2023 does not address criminal liability (e.g., IPC Sections 384, 506 for blackmail/threats); it governs *only the admissibility* of evidence. The complainant must file a criminal case under IPC while ensuring evidence complies with BSA sections above.*

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